



CHAPTER xiii

An Act to authorise the Great Northern London Cemetery Company to sell certain lands; and for other purposes.

[9th May, 1961.]

WHEREAS—

(1) The Great Northern London Cemetery Company (hereinafter called “the Company”) was incorporated by the Great Northern London Cemetery Act, 1855, and, under the powers of that Act, purchased lands in the urban district of East Barnet, in the county of Hertford, and constructed a cemetery on a portion of the said lands:

(2) Further provisions were made with regard to the said cemetery and further powers were conferred on the Company by the Great Northern London Cemetery Act, 1876, and the Great Northern London Cemetery Act, 1896, and the Company were empowered, by the Great Northern London Cemetery (Crematorium) Act, 1953, to erect and maintain and have erected, within the said cemetery, a crematorium for the burning of human remains:

(3) The said cemetery is situated on that portion of the lands purchased by the Company under the said Act of 1855 which lies on the east side of Brunswick Park Road, in the said urban district of East Barnet, and the remainder of the said lands, extending to approximately three and one-half acres, lies on the west of the said Brunswick Park Road:

(4) A portion of the said lands, which lie on the west of the said Brunswick Park Road, has in the past been set apart and utilised by the Company as an unconsecrated cemetery but has not been used for the burial of human remains for many years, and the remaining portion thereof, extending to some 1·4 acres or thereabouts, and having a frontage to the said Brunswick Park Road (hereinafter referred to as “ the surplus land ”), has not been used for such purpose and, having regard to the extent of ground available in the said cemetery of the Company, and to the existence of the said crematorium, is not required by the Company for or in connection with the burial of the dead:

(5) It is expedient that the Company should, subject to the provisions of this Act, be authorised to sell and dispose of the surplus land:

(6) The objects of this Act cannot be obtained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Great Northern London Cemetery Company Act, 1961.

(2) This Act and the Great Northern London Cemetery Acts, 1855 to 1953, may be cited together as Great Northern London Cemetery Acts, 1855 to 1961.

Interpretation.

2.—(1) In this Act—

“ Company ” means the Great Northern London Cemetery Company;

“ burial ground ” means that part of the lands of the Company lying to the west of Brunswick Park Road in the urban district of East Barnet, in the county of Hertford, shown coloured green on the signed plan;

“ signed plan ” means the plan signed in triplicate by the Right Honourable the Lord Merthyr, the chairman of

the committee of the House of Lords to whom the Bill for this Act was referred, one copy of which plan has been deposited in each of the following offices:—

(a) the office of the Clerk of the Parliaments, House of Lords;

(b) the Private Bill Office of the House of Commons; and

(c) the office of the Company;

“surplus land” means the area of land described in the schedule to this Act and shown coloured pink on the signed plan.

(2) If there be any discrepancy between the schedule to this Act and the signed plan the signed plan shall prevail.

3. Notwithstanding anything in any enactment, the Company may, subject to the provisions of section 4 (Company to secure access, etc., to burial ground) of this Act, sell the surplus land or any part thereof.

4. Notwithstanding anything in section 3 (Power to sell surplus land) of this Act, the Company shall take all such steps as may be necessary to secure that a suitable access to the burial ground is provided and maintained in a reasonable condition in all time coming, and that the burial ground is fenced off from the surplus land or from any part thereof sold by the Company by a wall of a height of not less than seven feet (with a suitable gateway leading to the burial ground provided with a suitable gate or gates) which shall, subject to the granting of any necessary permission under the Town and Country Planning Acts, 1947 to 1959, and any regulations or orders made thereunder, be erected and thereafter maintained to the reasonable satisfaction of the East Barnet Urban District Council.

5. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

6. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Company.

SCHEDULE

DESCRIPTION OF SURPLUS LAND REFERRED TO IN THE
FOREGOING ACT

A piece of land in the urban district of East Barnet, in the county of Hertford, extending to 1·4 acres or thereabouts and situated on and having a frontage of 231 feet or thereabouts to the west side of Brunswick Park Road and bounded on the south by land belonging to the Standard Telephone Company Limited, on the west by land belonging to the Company, on the north by land belonging to Hammond Estates Limited and on the east by Brunswick Park Road.

Table of Statutes referred to in this Act

Short title	Session and chapter
Great Northern London Cemetery Act, 1855	18 & 19 Vict. c. clix.
Great Northern London Cemetery Act, 1876	39 & 40 Vict. c. ccxvii.
Great Northern London Cemetery Act, 1896	59 & 60 Vict. c. xxxix.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6 c. 51.
Great Northern London Cemetery (Crematorium) Act, 1953	1 & 2 Eliz. 2 c. xii.

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ARRANGEMENT OF SECTIONS

Section

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2. Interpretation.
3. Power to sell surplus land.
4. Company to secure access, etc., to burial ground.
5. Saving for town and country planning.
6. Costs of Act.

SCHEDULE—Description of surplus land referred to in the foregoing Act.